SUPREME COURT OF INDIA

APPELLATE JURISDICTION · CONSTITUTION BENCH (9 JUDGES)

Writ Petition (Civil) No. 930 of 1990 **CNR: SCIN010009301990**

Date of Pronouncement: 16 November, 1992 *Citation: 1992 Supp (3) SCC 217*

CORAM: Hon'ble M.H. Kania, C.J., M.N. Venkatachaliah, S.R. Pandian, T.K. Thommen,

Petitioner / Appellant: Indra Sawhney & Others

- VERSUS -

Respondent / State: Union of India & Others

SUBJECT: CONSTITUTIONAL LAW & AFFIRMATIVE ACTION **AUTHORITY: Good Law (9-Judge Constitution Bench Landmark)**

JUDICIAL RATIO DECIDENDI & OPERATIVE PRINCIPLES:

Reservation under Article 16(4) cannot exceed 50% of seats or posts save in extraordinary situations. The creamy layer among socially and educationally backward classes must be excluded from affirmative action benefits.

STATUTORY PROVISIONS INTERPRETED: Article 16(1), Article 16(4), Article 15(4), Article 14, Article 340

FINAL DISPOSITION: MANDAL COMMISSION UPHELD WITH 50% CEILING

EXECUTIVE SUMMARY:

Nine-judge Constitution Bench upheld 27% reservation for Other Backward Classes (OBCs) subject to the exclusion of the 'creamy layer' and ruled that total reservations should not exceed 50% except in extraordinary situations.

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